

25STCV26714 25STCV26714

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-08-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C08%2F13%2F2026

Source SHA-256: a6ccfb9f94cf772413ebad3ec4325cf4287ef527702e31bd02758ec76c9b2d30

Case Number: 25STCV26714 Hearing Date: August 13, 2026 Dept: 414

25STCV26714

Verginia Petikyan v. Dianna Zohrabyan, et al.

Thursday, August

13, 2026

[TENTATIVE]

ORDER SUSTAINING VERGINIA PETIKYAN'S DEMURRER TO DIANNA ZOHRABYAN'S
CROSS-COMPLAINT (0706)

[TENTATIVE]

ORDER SUSTAINING ONIK PETIKYAN, MARY PETIKY AN, AND MAGDALENA PETIKYAN'S
DEMURRER TO DIANNA ZOHRABYAN'S CROSS-COMPLAINT (8326)

I.

BACKGROUND

Plaintiff,

Verginia Petikyan, filed her complaint in this action on September 11, 2025, alleging that Defendants exploited Plaintiff and induced Plaintiff to lend Defendants more than \$1.4 million between 2020 and 2024. The complaint alleges that Defendants also induced Plaintiff to open a credit card account that Defendants used to accumulate debt. Plaintiff asserts 11 causes of action for financial elder abuse, breach of contract, fraud, conversion, and related claims.

On April

17, 2026, Defendant, Diana Zohrabyan, ("Cross-Complainant" or "Diana")^[1]

filed a Cross-Complaint against Verginia Petikyan ("Verginia" or "Cross-Defendant"), Onik Petikyan, Mary Petikyan, and Magdalena Petikyan (collectively, "Cross-Defendants" or "Petikyans") asserting affirmative relief for (1) involuntary servitude, (2) intentional infliction of emotional distress, and (3) intentional misrepresentation.

Cross-Defendant

Verginia demurs to the Cross-Complaint (0706) on grounds of uncertainty and failure to state a claim.

II.

LEGAL STANDARDS

A

demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the complaint's sufficiency, the court must assume the truth of the properly pleaded factual allegations as well as facts that can be reasonably inferred from those expressly pleaded facts. The court may also consider matters properly subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Sufficient

facts are the essential facts of the case "with reasonable precision and with particularity that is sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) Whether the Plaintiff will be able to prove the pleaded facts is irrelevant. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.)

A

demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing, they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).)

III.

DISCUSSION

A.

Uncertainty

on grounds of group pleading. Sustained.

Cross-Defendant Verginia argues that the Cross-Complaint is uncertain because Diana alleges claims against Cross-Defendants as a group, without specifying which Cross-Defendant engaged in the wide-ranging wrongful acts.

The Cross-Complaint alleges that Verginia is the mother of Mary and Magdalena (also Cross-Defendants.) Cross-Complainant Diana worked for Verginia at Verginia's Greek Restaurant. (Cross-compl ¶ 6-.) It was through that relationship that Verginia allegedly knew about Dianna and her family situation, immigration status, and other personal information. (Cross-compl ¶ 9-10.)

The Cross-Complaint is uncertain. While the general allegations identify Verginia's role in certain acts, the claims are alleged against all four Cross-Defendants as a group, although Cross-Complainant was allegedly only employed by Verginia. While the factual allegations lay out alleged misconduct by Verginia specifically in some cases and more obliquely in others, the inclusion of all of the factual allegations, and their relationship with which cause of action cannot be discerned. Cross-Complainant alleges wide-ranging grievances from paragraphs 6 through 35, such that one cannot determine the basis for liability to Cross-Complainant for each alleged claim and based on which particular alleged misconduct.

For example, the first cause of action for involuntary servitude alleges Dianna started working for Verginia but someone forced Dianna to perform labor or services. The claim alleges coercion, deception, withholding of immigration and information and status, threats, and debt bondage among other things, sometimes identifying what Verginia is alleged to have done and sometimes referring to all Cross-Defendants as a group. (Cross-compl ¶¶ 35-70.)

Verginia cites a federal court case that requires the plaintiff to differentiate allegations when suing more than one defendant. (Swartz v. KPMG LLP (9th Cir. 2007) 476 F.3d 756, 764.) While Swartz construed the federal rules of pleading, the reason for the rule

applies equally here as Verginia cannot determine what her alleged participation was in a scheme to commit "slavery, bondage, or threats."

Cross-Complainant is required to allege claims in "ordinary and concise language." (Brown v. Sweet (1928) 95 Cal.App. 117, 123 [it is a general rule that material matters must be distinctly stated, and may not be left to inference to be drawn from doubtful or obscure language.].)

B.

Involuntary

Servitude. Sustained.

Cross-Complainant brings this action pursuant to 18 U.S.C.A. § 1584 (West). As Verginia observes, this is a criminal statute. Verginia identifies the federal statute that permits a private right of action, however, that action must be brought "in an appropriate district court of the United States." (18 U.S.C.A. § 1595 (West).)

Dianna acknowledges section 1595 but argues she can bring a state claim through Civ Code § 52.5, which permits a civil action for damages for victims of human trafficking (not involuntary servitude). (Civ. Code, § 52.5.) This falls under the Tom Bane Civil Rights act, which Dianna does not allege. Human trafficking requires facts showing that a person deprived or violated the personal liberty of another with the intent to obtain forced labor or services." (Pen. Code, § 236.1.) The elements of the offense are "(1) the defendant either deprived another person of personal liberty or violated that other person's personal liberty; and (2) when the defendant did so, he or she intended to obtain forced labor or services from that person." (People v. Halim (2017) 14 Cal.App.5th 632, 643.) Dianna alleges she was hired as a kitchen worker to assist with washing dishes. (Cross-compl ¶ 7.) Whatever payments Verginia made to Dianna were for the job that Dianna performed. (Cross-compl ¶ 13.)

Dianna alleges she did more than kitchen work, such as accounting and food delivery applications, among other things, and concludes this is involuntary servitude. (Cross-compl ¶ 16, 22.) These bare allegations do not support involuntary servitude, or human trafficking.

Dianna points to a number of federal statutes prohibiting peonage, involuntary servitude,

forced

labor, and trafficking for peonage, slavery, involuntary servitude, or forced labor. However, the alleged claim is limited to section 1584, not any of the other cited statutes, and civil action violations “under this chapter” for peonage, slavery, and trafficking must be brought in federal Court. (Civ. Code § 1595.)

The Court takes judicial notice of

Dianna’s verified answer to the complaint. (Evid. Code § 452(d). As Verginia points out, Dianna’s verified answer to the complaint admits that Verginia paid Dianna for the work she performed, which undermines the contention that she involuntarily provided slave labor. She cannot be both a paid employee and an involuntary worker doing work against her will. (Answer ¶¶ 10- 13 and throughout.)

The Court is not obliged to accept

allegations as true if they conflict with other pleadings, in this case

Dianna’s verified answer. (Del

E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604 [“A pleading valid on its face may nevertheless be subject to demurrer

when matters judicially noticed by the court render the complaint meritless. In this regard the court passing upon the question of the demurrer may look to affidavits filed on behalf of plaintiff”].

C.

Intentional

infliction of emotional distress. Sustained.

To

prevail on this claim, plaintiff must allege facts showing (1) extreme and outrageous conduct with the intention of causing, or reckless disregard of the probability of causing emotional distress, and (2) plaintiff suffered severe or extreme emotional distress as a proximate result. (Christensen

v. Superior Court (1991) 54

Cal.3d 868, 903.) Conduct

is “extreme and outrageous” where a defendant (1) abuses a relation or position

which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." (Agarwal v. Johnson (1979) 25 Cal.3d 932, 946.)

To the extent this claim is based on involuntary servitude, it is derivative of the first cause of action which is defective.

The outrageous conduct alleged consists of allegations that Cross-Defendants threatened to report her to immigration, used profanity, called her names, misrepresented facts, and sent text messages, or made them orally. "Extreme" conduct "exceeds all bounds of that usually tolerated in a civilized community." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1051.)

The claim is uncertain as to Verginia's participation in extreme and outrageous conduct and the Court cannot determine which of the alleged misconduct alleged in narrative form is the outrageous conduct supporting the claim. Cross-Complainant must allege facts to support each element described above.

Dianna argues that she alleges "a years-long course of coercive conduct, threats involving her children, exploitation of immigration status, financial pressure, humiliation, compelled labor, late-night demands, emotional trauma, hospitalization, and medical and therapy expenses." (Opp. 4:15-17. Dianna's statement in opposition are conclusions. Dianna must allege the outrageous conduct in a concise manner and in a way that informs Verginia how she is involved in the misconduct.

Additionally, the claim appears to be a combination of making statements and making false statements with intent to deceive. (Cross-compl ¶ 82-3.) If this claim is based on fraud, this is alleged as a third cause of action and will be discussed below.

D.

Intentional
misrepresentation. Sustained.

A claim for fraud
requires facts to support the following elements: (1) a misrepresentation, (2)
made with knowledge of its falsity, (3) Defendant intended to defraud
Plaintiff, i.e., induce Plaintiff's reliance, (4) Plaintiff justifiably relied
on the misrepresentation, (5) causing damage. (Nagy
v. Nagy
(1989) 210 Cal.App.3d 1262, 1268.)

Fraud claims are subject to strict
requirements of particularity in pleading. (Id.) The particularity
requirements necessitate pleading facts showing "how, when, where, to whom, and
by what means the representations were tendered." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) The
requirement "applies not only to the alleged misrepresentation, but also to the
elements of causation and damage." (Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 776.)

Dianna alleges: "Cross Defendants
repeatedly misrepresented the facts concerning the truthful information for
applying various government assistance programs, forced Diana to work for each
and every Cross Defendants by performing tasks unrelated to her initial
employments, and taking leverage of Diana's immigration status and her
inability to reunited with her sons, and her financial hardship, by forcing her
to involuntary servitude." (Cross-compl ¶ 89.)

Dianna's opposition confuses more than it
clarifies. Dianna argues the claim is based on the fact that "Verginia gave
false information to Dianna, caused Dianna to complete and submit applications
and paperwork based on that information, intended Dianna to rely on the
information so that she would perform work for Verginia's benefit, and that
Dianna later discovered the falsity and suffered damages." (Opp. 4:22-26.) What damage did Dianna suffer
because she was allegedly involved in someone else's fraud?

The Court cannot discern what the
misrepresentation is that Dianna relied upon that induced her reliance, facts
showing reliance was justifiable, or when the misrepresentation was made, by
whom, when, and by what means and resulting damage to Dianna.

Accusations about why Verginia should know

better are irrelevant. (Cross-compl ¶ 92.) What this claim appears to allege is that Verginia allegedly defrauded the government with respect to assistance programs. This does not state a claim for fraud against Dianna. Additionally, recycling preceding allegations of generally bad conduct obscures the purported fraud claim causing damage to Dianna. The Cross-Complaint should allege facts material to the cause of action in order to put Verginia on notice of the claims alleged against her.

E. Statute of limitations

The Court is unable to resolve the statute of limitations issues with respect to each claim, because the Court cannot identify precisely the wrongful conduct supporting each claim and when it was made, or what claim is being made.

In order for the court to sustain demurrer to the complaint based on a statute of limitations defect, “the defect must clearly and affirmatively appear on the face of the complaint... . A demurrer will not lie where the action may be but is not necessarily barred.” (Citizens for a Responsible Caltrans Decision v. Department of Transportation (2020) 46 Cal.App.5th 1103, 1117; Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1398.)

IV. CONCLUSION

Dianna has not persuasively argued that she has a claim for involuntary servitude on the statute she relies on, or that she was made to work involuntarily if she was also Verginia's paid employee, or that she was “trafficked” under California law. Nor has Diana demonstrated she has a fraud claim against Verginia if Verginia defrauded the government.

If there is a reasonable possibility that the defect in a complaint can be cured by amendment, it is an abuse of discretion to sustain a demurrer without leave to amend. [Citation.] The burden is on the plaintiff, however, to demonstrate the manner in which the complaint might be amended ... [appellant ‘must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading’].’ (Association of Community Organizations for Reform Now v. Department of Industrial Relations (1995) 41 Cal.App.4th 298, 302.)

Dianna's opposition does not meet that burden. She should be prepared to address at the hearing how these defects can be cured.

Cross-Defendant's demurrer to the entire Cross-Complaint is SUSTAINED.

[TENTATIVE]

ORDER SUSTAINING ONIK PETIKYAN, MARY PETIKYAN, AND MAGDALENA PETIKYAN'S DEMURRER TO DIANNA ZOHRABYAN'S CROSS-COMPLAINT (8326)

I. BACKGROUND

To reiterate, on April 17, 2026, Defendant, Diana Zohrabyan, ("Cross-Complainant" or "Diana")^[2] filed a Cross-Complaint against Verginia Petikyan ("Verginia" or "Cross-Defendant"), Onik Petikyan, Mary Petikyan, and Magdalena Petikyan (collectively, "Cross-Defendants" or "Petikyans") asserting affirmative relief for (1) involuntary servitude, (2) intentional infliction of emotional distress, and (3) intentional misrepresentation.

The Petikyan Cross-Defendants demur to the entire Cross-Complaint. The Court's electronic filing system does not reflect that Dianna opposed this demurrer.

II. LEGAL STANDARDS

The Court incorporates the legal standards identified in the ruling on Verginia's demurrer to the Cross-Complaint.

III. DISCUSSION

A. Uncertainty on grounds of "mob" pleading.
Sustained.

The Cross-Complaint is uncertain because

Diana alleges claims against Cross-Defendants as a group, without specifying which Cross-Defendant engaged in the wide-ranging wrongful acts. The only allegation against Cross-Defendant Onik is that he is a Los Angeles resident. (Cross-compl ¶ 3.) Mary and Magdalena are Verginia's daughters who allegedly called Dianna names. (Cross-compl ¶ 10.)

Mary and Magdalena are alleged to be a part of the alleged fraud on the U.S. government because they "used Diana" by providing false information. (Cross-compl ¶ 11.) Dianna does not allege a factual basis for liability against the Petikyans. The existence of a duty owed may properly be challenged at the demurrer stage, as it is generally a question of law. (Osornio v. Weingarten (2004) 124 Cal.App.4th 304, 316.)

B.

Involuntary

Servitude. Sustained.

Cross-Defendants argue there are no facts to support liability against them for involuntary solitude. The Cross-Complaint alleges Verginia employed Dianna. (Cross-compl ¶ 7.) Cross-Complainant must allege facts to support the legal conclusion that Dianna was the slave for all Cross-Defendants over 10 years. (Cross-compl ¶ 44.)

Cross-Defendants evaluate this claim under 18 U.S.C.A. § 1589 (West). However, Cross-Complainant brings this action pursuant to 18 U.S.C.A. § 1584 (West) (Sale into involuntary servitude.) The claim fails because Dianna's civil action must be brought in federal Court.

(18 U.S.C.A. § 1595 (West).)

18 U.S.C. § 1589, raised by

Cross-Defendants, precludes a person from obtaining labor or service by force, threats, physical restraint or threats of physical restraint. (18 U.S.C.A. § 1589 (West).) Dianna did not allege such acts against Cross-Defendant.

There are no facts to support liability against the Cross-Defendants for money lent to Dianna. (Cross-compl ¶¶ 14, 39,

47-50.) That Cross-Defendants called Dianna names does not state a claim for involuntary servitude.

Dianna can bring a civil action for involuntary servitude pursuant to section 1595 but as Cross-Defendants observe, this claim is not alleged.

Cross-Defendants argue that if Dianna is trying to allege a claim as a victim of human trafficking under Penal Code § 236.1 and Civ. Code § 52.5, the claim is still defective under the alleged facts and Dianna does not allege a claim under Civil Code § 52.5. Human trafficking requires facts showing that a person deprived or violated the personal liberty of another with the intent to obtain forced labor or services." (Pen. Code, § 236.1.) The elements of the offense are "(1) the defendant either deprived another person of personal liberty or violated that other person's personal liberty; and (2) when the defendant did so, he or she intended to obtain forced labor or services from that person." (People v. Halim (2017) 14 Cal.App.5th 632, 643.)

The Cross-Complaint does not allege Cross-Defendants engaged in such conduct.

C.
Intentional
infliction of emotional distress. Sustained.

To prevail on this claim, Cross-Complainant must allege facts showing (1) extreme and outrageous conduct with the intention of causing, or reckless disregard of the probability of causing emotional distress, and (2) plaintiff suffered severe or extreme emotional distress as a proximate result. (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) Conduct is "extreme and outrageous" where a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." (Agarwal v. Johnson (1979) 25 Cal.3d 932,

946.) Dianna does not allege any facts

showing Onik engaged in actionable behavior. Mary and Magdalena are alleged to have called Dianna profane names. (Cross-compl ¶ 10.) "Outrageous conduct" may be considered "irritating, insulting or even distressing but it is not actionable and must simply be endured without resort to legal redress." (Yurick v. Superior Court (1989) 209 Cal.App.3d 1116, 1129 ["there can be no recovery for mere profanity, obscenity, or abuse, without circumstances of aggravation, or for insults, indignities or threats which are considered to amount to nothing more than mere annoyances. The plaintiff cannot recover merely because of hurt feelings."].)

D.

Intentional

misrepresentation. Sustained.

A claim for fraud requires facts to support the following elements: (1) a misrepresentation, (2) made with knowledge of its falsity, (3) Defendant intended to defraud Plaintiff, i.e., induce Plaintiff's reliance, (4) Plaintiff justifiably relied on the misrepresentation, (5) causing damage. (Nagy v. Nagy (1989) 210 Cal.App.3d 1262, 1268.)

Fraud claims are subject to strict requirements of particularity in pleading. (Id.) The particularity requirements necessitate pleading facts showing "how, when, where, to whom, and by what means the representations were tendered." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) The requirement "applies not only to the alleged misrepresentation, but also to the elements of causation and damage." (Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 776.)

Dianna alleges: "Cross Defendants repeatedly misrepresented the facts concerning the truthful information for applying various government assistance programs, forced Diana to work for each and every Cross Defendants by performing tasks unrelated to her initial employments, and taking leverage of Diana's immigration status and her inability to reunited with her sons, and her financial hardship, by forcing her to involuntary servitude." (Cross-compl ¶ 89.)

As

Cross-Defendants argue, the introductory factual allegations are mostly directed at Verginia. The claim is otherwise uncertain as to Cross-Defendants' involvement. Verginia's alleged perpetration of fraud on the government does

not translate into a private right of action for fraud against

Cross-Defendants. The paragraph cited above does not provide the specific facts supporting each element of the claim much less, how, when, where, to whom, and

by what means the representations were tendered by Cross-Defendants. (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.)

F. Statute of limitations

The Court is unable to resolve the statute of limitations issues with respect to each claim, because the Court the Cross-Complaint does not specifically identify actionable conduct against Cross-Defendants and when they were made.

In order for the court to sustain demurrer to the complaint based on a statute of limitations defect, "the defect must clearly and affirmatively appear on the face of the complaint... . A demurrer will not lie where the action may be but is not necessarily barred." (Citizens for a Responsible Caltrans Decision v. Department of Transportation (2020) 46 Cal.App.5th 1103, 1117; Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1398.)

IV. CONCLUSION

Cross-Defendants demurrer to the Cross-Complaint is SUSTAINED. If there is a reasonable possibility that the defect in a complaint can be cured by amendment, it is an abuse of discretion to sustain a demurrer without leave to amend. [Citation.] The burden is on the plaintiff, however, to demonstrate the manner in which the complaint might be amended ... [appellant 'must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading']. (Association of Community Organizations for Reform Now v. Department of Industrial Relations (1995) 41 Cal.App.4th 298, 302.)

Cross-Complainant did not oppose this demurrer. Accordingly, the Court is not inclined to grant leave to amend.

[1]

First names are used for clarity, not out of familiarity or disrespect

[2]

First names are used for clarity, not out of familiarity or disrespect